

of course be held evenly as between all parties, and the tenant for life should not be allowed, by an investment on a security less safe or less permanent than the usual one, and therefore yielding to the present holder an increased rate of interest, to advance himself at the expense of the remainderman (c).

[*334] *74. **Long Annuities, &c.**—If a testator's estate consist of Long Annuities, or other fund either not a Government security or not of the most permanent character, the Court, as we have seen, as soon as its observation is attracted to the circumstance, invariably directs a conversion of such estate into Three per cent. Bank Annuities (a); and even Four per cent. and Five per cent. Bank Annuities, while that description of stock existed, were ordered to be similarly converted (b). It follows that trustees, who must be guided by the practice of the Court, would not be justified, in the absence of a special power, in investing trust moneys settled upon several persons successively upon any securities, which, by the rule of the Court referred to, would be liable to be converted into other securities. Even where the trustees were empowered by the will to *continue* any of the testator's *Government Stocks*, it was held that they were not justified in continuing *Long Annuities* (c).

75. **Navy 5 per cents.**—However, where the trustees were directed by the will to invest on "*Government* or other good security," and part of the testator's estate consisted of Navy Five per cents., and the tenant for life continued to receive the dividends for more than thirty years, the Court refused to hold the trustees liable, for not having converted the Navy Five per cents. into Three per cent. Consols (d).

76. **Selling out Consols.**—Where the fund is already invested in *Consols*, it would be a clear breach of trust to sell out and invest the proceeds in an irregular fund, as, for instance, in *Long Annuities* (e).

(c) See *Raby v. Ridehalgh*, 7 De G. M. & G. 104.

(a) See pp. 298, 300, *supra*.

(b) *Howe v. Earl of Dartmouth*, 7 Ves. 151, *per* Lord Eldon; *Powell v. Cleaver*, and other cases, cited *Id.* 142.

(c) *Tickner v. Old*, 18 L. R. Eq. 422.

(d) *Baud v. Fardell*, 7 De G. M. & G. 628.

(e) *Kellaway v. Johnson*, 5 Beav. 319.